

With the above standards in mind, and viewing the evidence in the light most favorable to defendant and drawing all reasonable inferences in defendant's favor, the court finds there is substantial evidence to support the jury's verdict. Plaintiff's motion for judgment notwithstanding the verdict is denied.

6. S-CV-0050979 Pearson, James v. Kaiser Found. Hospitals

The motion for summary judgment or, in the alternative, summary adjudication is continued to be heard on **June 30, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.

7. S-CV-0051367 Brown, Maurice v. ClearCaptions

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Amended Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement and plaintiff's amended moving papers filed in connection with the motion, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class for the purposes of settlement as, "all individuals who are or were employed by Defendants as non-exempt employees in California during the Class Period" of October 4, 2019 through October 6, 2024.

The court preliminarily approves the class action and PAGA action settlement agreement attached as Exhibit A to the amended declaration of counsel Jonathan Melmed. The court also approves the proposed form of the notice attached as Exhibit 1 to the to Exhibit A of the amended declaration of counsel Melmed with two changes: on page 4, the Settlement

Administration Costs are listed as “up to \$30,000,” and shall be amended to “\$5,990.” With this change, the proposed form of notice is approved.

The court appoints and designates Maurice Brown as the class representative. The court appoints and designates Jonathan Melmed and Laura M. Supanich of Melmed Law Group PC as class counsel for the purpose of settlement. The court appoints and designates Apex Class Action Administration as the settlement administrator. The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted in connection with the instant motion, except paragraph 1.e. is amended from \$30,000 to \$5,990.

The final approval hearing is scheduled for **November 3, 2026 at 8:30 a.m. in Department 42**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

8. S-CV-0051899 Taylor, Elijah Jett v. White, Jeanne Evelyn

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

9. S-CV-0053067 Illingworth, Jordan v. Luxottica of America

Moving party is advised the notice of motion must include the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to be relieved as counsel

The motion to be relieved as counsel for plaintiff is granted, effective upon the filing of a proof of service of the signed order on all parties.

10. S-CV-0053507 Illingworth, Jordan v. Luxottica of America

Moving party is advised the notice of motion must include the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to be relieved as counsel

The motion to be relieved as counsel for plaintiff is granted, effective upon the filing of a proof of service of the signed order on all parties.